

Trademark Confusion Checklist Guide

This guide helps you determine whether your trademark might be considered confusingly similar to another, which could lead to legal issues such as USPTO refusal, trademark infringement, or brand dilution. By assessing the most relevant factors, you can evaluate your legal risk and take appropriate strategic action.

Step-by-Step Instructions for Using the Trademark Confusion Checklist:

1. Part 1: Confusion Risk Factors
 - For each of the 15 factors listed in the table:
 - Compare Your Trademark to the existing or cited trademark.
 - Assign a Risk Level:
 - Low Risk
 - Medium Risk
 - High Risk
 - Add Notes: Briefly explain your reasoning or evidence for the assigned risk level.
2. Part 2: Calculate Your Risk Score
 - For each of the 13 factors in the table:
 - Assign a Numeric Score:
 - 1 = Low Risk
 - 2 = Medium Risk
 - 3 = High Risk
 - Total Your Score at the bottom of the table.
3. Part 3: Interpret Your Results
 - Find Your Total Score Range in the table provided.
 - Identify Your Risk Level:
 - Low Risk
 - Medium Risk
 - High Risk
 - Severe Risk
 - Review the Recommended Strategy for your risk level.
4. Part 4: Analyze Your Results
 - Key Strengths: Identify aspects of your trademark that differentiate it and lower the risk of confusion.
 - Risk Factors: Note any significant similarities that increase the risk of confusion.
 - Next Steps: Decide on your course of action (e.g., continue, revise, seek legal advice).

Remember: Consider the overall impression from the consumer's perspective. Would they likely believe the two trademarks represent the same source?

Part 1

#	Factor	Risk Level
1	Similarity in Appearance – Do the marks look alike?	
2	Similarity in Sound – Do they sound alike when spoken?	
3	Similarity in Meaning / Connotation – Do they suggest the same idea?	
4	Overall Commercial Impression – Do they feel similar overall?	
5	Similarity of Goods / Services – Are they related or competitive?	
6	Channels of Trade – Are they sold in the same way or places?	
7	Target Audience – Do they target the same types of consumers?	
8	Consumer Sophistication – Are buyers likely to be cautious?	
9	Actual Confusion – Has real confusion occurred?	
10	Coexistence with Similar Marks – Are other similar marks registered?	
11	Third-Party Use – Is the shared term widely used?	
12	Fame of the Cited Mark – Is the other mark well-known?	
13	Concurrent Use Without Conflict – Have both marks coexisted peacefully?	
14	Market Interface – Are there agreements or settlements?	
15	Extent of Potential Confusion – How serious would it be?	

Notes:

Part 2

#	Factor Description	Score (1-3)
1	Similarity in Appearance	
2	Similarity in Sound	
3	Similarity in Meaning / Connotation	
4	Overall Commercial Impression	
5	Similarity of Goods / Services	
6	Channels of Trade	
7	Target Audience	
8	Consumer Sophistication & Care	
9	Actual Confusion	
10	Third-Party Use	
11	Fame of Cited Mark	
12	Concurrent Use Without Conflict	
13	Market Interface	

Total Score: _____

Notes:

Part 3:

Total Score Range	Risk Level	Recommended Strategy
13–21	Low Risk	Likely defensible. Proceed or make minor changes if needed.
22–34	Medium Risk	Consider submitting evidence, disclaimers, or narrowing goods/services.
35–39	High Risk	Risk of refusal or litigation. Explore consent, rebranding, or negotiation.
40+	Severe Risk	Likely conflict. Refile, rebrand, or seek legal help immediately.

Notes:

Part 4:

Category	Comments
Key Strengths	Identify any major differences in appearance, goods, or customer base that support your case.
Risk Factors	Note any critical overlaps or similarities that could raise confusion.
Next Steps	Decide how to proceed: continue, revise, submit evidence, consult a trademark attorney, or negotiate.

Notes:

Final Tip:

Don't analyze marks in isolation—think like your customer. Would the average buyer reasonably believe these two brands come from the same source?